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Provision of May 9, 2024

Register of provisions

No. 271 of May 9, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to the

processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data

(legislative decree June 30, 2003, No. 196), as

amended by legislative decree August 10, 2018, No. 101, containing

provisions for the adaptation of the national

legislation to the aforementioned Regulation (hereinafter

"Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

WHEREAS

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated June 26, 2023, Mr. XX

complained of having received a promotional email from

Azzurro Club Hotels S.r.l. (hereinafter, ACH or the Company), a subject with which the

complainant had never had any dealings. In the

same complaint, Mr. XX stated that he had

exercised the rights under Article 15 of the

Regulation and had never received a response

(he had specifically requested to know

the origin of the data and to obtain a copy).

The Company - which has always communicated through

its defense attorney - responded to the request for information from the Office

with a note dated September 19, 2023, stating that it

held the complainant's data because "... Mr.

XX was a customer, in past years, of the "Hotel

XX", in XX.... Hotel currently operated under lease

by XX "(1).

However, Mr. XX replied to these statements

noting that he had never stayed at the

mentioned Hotel XX. In response to this reply, ACH stated: "Dear Mr. XX, having learned that you have

never stayed at Hotel XX, it is likely that your

personal data was provided to Group XX,

which previously managed the XX along with other

facilities where you may have stayed."

The tone of this last reply, while contradicting the statements made on September 19, suggested that the data controller was merely speculating about the origin of the data without having full knowledge.

The Office therefore requested, in addition to the information already provided, to produce documentation proving the acquisition of the complainant's data with an indication of the relevant date. The Company responded with a note dated December 27, 2023, limiting itself to stating that it had deleted the complainant's data.

In all the described communications, it is also noted that no clarification was ever provided regarding the reasons for the lack of response to the request for the exercise of rights submitted by Mr. XX on May 8, 2023.

2. THE CONTESTATION OF VIOLATIONS

The Office contested the violations identified with the initiation of the procedure dated February 29, 2024, prot. No. 25368/24, notified via certified email. Here, the motivations expressed in the aforementioned act are fully referenced, and ACH was contested for violating Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code for having sent a promotional email to Mr. XX without proving the acquisition of appropriate consent for the processing of data for promotional purposes. Furthermore, it was also deemed that the violation of Article 12, paragraph 3 and Article 15 of the Regulation was integrated due to the lack of response to the request for access to his data submitted by Mr. XX, a request that was not satisfied even after the initiation of the investigation by the Guarantor.

3. THE DEFENSE OF THE COMPANY

In the defense memorandum dated March 29, 2024, the Company, regarding the contested sending of an email without the consent of the interested party, deemed the observation made by the Guarantor to be unfounded, as this communication, according to the Company, would not have had a promotional nature but would have been exclusively aimed at obtaining the complainant's consent to receive future commercial proposals. To support its thesis, ACH cited the ruling of the Rome Court No. 10789/2019, which deemed the sending of a first communication to request or recover consent for future promotional communications to be admissible.

Regarding the contested lack of response to the complainant's request to exercise his rights, ACH stated that it had not received the email sent by Mr. XX on May 8, 2023.

4. LEGAL ASSESSMENTS

4.1 Sending promotional communications without consent

Contrary to what was claimed by ACH in the defense memorandum, from the examination of the email attached to the complaint, it is evident that it has an unequivocally

promotional purpose as it aims to encourage the purchase of a service through the recognition of a series of bonuses and discounts. The

****Reference to the hypothesis of an exemption, related to the mere intent to acquire the consent of the interested party, is not shareable as - as repeatedly noted by the Guarantor - the sending of a communication to acquire consent for promotional purposes is not admissible since it has a teleologically promotional nature. The same principle has been expressed by the Court of Cassation(2) which, by annulling the sentence of the Court of Rome no. 10789/2019 cited by ACH, recalled that "if consent to marketing campaigns has not been previously granted, the condition is to be understood as meaning that it has simply been denied at the time of the contract. Thus, any subsequent activity integrated by automated communications aimed at changing this sense becomes an illegitimate interference, as it is aimed at marketing the additional service despite the lack of explicit consent."****

****Moreover, it is noted that the alleged justification of the non-promotional nature of the message was represented only in the defense memorandum despite the fact that, in response to the first request for information, ACH had instead declared that it had sent a promotional email; in fact, it stated that it acted relying on the exemption granted by Article 130, paragraph 4, of the Code for so-called soft spam, the prerequisites of which the Company detailed - declaring to have fully complied with - including the requirement that "messages must be sent for the direct sale of products and/or services provided by the data controller."****

****As already mentioned, no evidence has ever been provided of any consent given by Mr. XX, nor of the fact that he had been a customer of the Company (a circumstance denied by the complainant himself). For these reasons, the violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code is confirmed, and it is necessary to impose an administrative pecuniary sanction, pursuant to Article 58, paragraph 2, letter i, of the Regulation.****

****4.2 Failure to respond to the request to exercise rights****

****ACH limited itself, in a completely generic manner, to declare that it had not received the complainant's email and did so only in the defense memorandum despite having been the recipient of two requests for information; requests to which it provided only contradictory and undocumented responses, never invoking the non-receipt of the email in its defense. It should also be noted that, despite the intervention of the Guarantor, no response has ever been provided regarding the request under Article 15 of the Regulation, particularly concerning the origin of the data. In its first response to the Guarantor, ACH stated - without documentation - that Mr. XX's data was present in the XX database as a customer "in past years" of Hotel XX; this hotel would have been leased by XX, which, however, is a legal entity different from ACH. This circumstance has, however, been subsequently denied by the statements of the complainant himself, to which the ACH's defense counsel replied, "having learned that you have never stayed at Hotel XX, it is likely that your personal data was provided to Group XX," thereby demonstrating that it does not possess any documentation proving its claims.****

****Finally, prompted by the Office to provide a more precise response regarding the origin of the data, the Company limited itself to stating that "ACH, upon receiving the complainant's email, proceeded to satisfy his request to exercise the 'Right of opposition' and 'Right of deletion' regarding the processing referred to in Articles 21 and 17 of GDPR 679/16." The inconsistency of this response is quite evident since the complainant has never exercised the rights referred to in Articles 17 and 21 of the Regulation, but only the right of access to the data, to which, to date, no response has been provided nor, presumably, can it be provided in the future since the Company has stated that it has deleted all data concerning Mr. XX. Therefore, it is believed that the violation of Articles 12, paragraph 3 and 15 of the Regulation is integrated, and it is necessary to impose an administrative pecuniary sanction, pursuant to Article 58, paragraph 2, letter i, of the Regulation.****

****5. ORDER FOR THE IMPOSITION OF THE ADMINISTRATIVE PECUNIARY SANCTION****

****Based on the above, various provisions of the Regulation and the Code related to processing carried out by ACH are found to be violated, for which it is necessary to apply Article 83, paragraph 3, of the**

Regulation, according to which, if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of the only sanction provided for by Article 83, paragraph 5, of the Regulation.**

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the annual global turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relative amount. In fulfillment of this provision, hypothesized, based on the information available in the last balance sheet (registered as of December 31, 2022), the

Recourse of the first hypothesis provided by the aforementioned art. 83, par. 5 and thus quantified at 20 million euros as the maximum applicable penalty, the following aggravating circumstances must be considered:

1. The severely negligent nature of the violation, since the Company has been unable to document the origin of the claimant's data in any way and has never provided adequate feedback, demonstrating serious negligence in the processing of personal data (art. 83, par. 2, lett. b), of the Regulation);
2. The degree of responsibility of the data controller, who has shown a total inability to provide adequate feedback to the request for access to the claimant's data, considering that, after the initiation of the investigation, the Company also deleted all data, even though it had not been requested by the data subject, thus making it impossible to document their origin (art. 83, par. 2, lett. d), of the Regulation);
3. The degree of cooperation with the Supervisory Authority, which has been completely insufficient since, despite the two requests sent, the Company provided inaccurate, contradictory, and undocumented responses (art. 83, par. 2, lett. f), of the Regulation).

As mitigating factors, it is considered that the following should be taken into account:

1. The number of subjects involved, since, as far as is evident in the records, the conduct would have concerned only the claimant (art. 83, par. 2, lett. a) of the Regulation);
2. The level of damage caused, consisting merely of the inconvenience of receiving an unwanted email in addition to not being aware of the origin of the data (art. 83, par. 2, lett. a) of the Regulation);
3. The absence of previous relevant violations committed by the data controller (art. 83, par. 2, lett. e), of the Regulation).

In an overall perspective of necessary balancing between the rights of data subjects and business freedom, in the initial application of the administrative monetary penalties provided by the Regulation, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the penalty. Therefore, it is believed that - based on the complex of the elements mentioned above - an administrative penalty of 10,000.00 euros (ten thousand) should be applied to ACH, equivalent to 0.05% of the maximum penalty of 20 million euros. The maximum penalty is identified with reference to the provisions of art. 83, par. 5, of the Regulation, considering that 4% of ACH's turnover, based on the data reported in the last financial statement, is less than 20 million euros.

It is noted that the conditions of art. 17 of the Garante Regulation no. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, for the annotation of the violations identified here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

It is also believed - considering the relevance of the violations - that, pursuant to art. 166, paragraph 7, of the Code, and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website should proceed as an accessory penalty.

****ALL OF THE ABOVE HAVING BEEN STATED, THE Garante****

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares unlawful the processing described in the terms of the motivation carried out by Azzurro Club Hotels S.r.l., based in Ravenna, via Lavezzola 2, VAT no. 02882260603; consequently

****ORDERS****

pursuant to art. 58, par. 2, lett. i), of the Regulation, Azzurro Club Hotels S.r.l., represented by its legal representative, to pay the sum of 10,000.00 euros (ten thousand) as an administrative monetary penalty for the violations indicated in the motivation; it is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed penalty.

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of 10,000.00 euros (ten thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with art. 27 of law no. 689/1981;

****DISPOSES****

a) pursuant to art. 166, paragraph 7, of the Code, the full publication of this provision on the Garante's website;

b) pursuant to art. 17 of the Garante Regulation no. 1/2019, orders the annotation in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree of September 1, 2011, no. 150, against this provision, an opposition may be proposed to the ordinary judicial authority, with an appeal filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the applicant resides abroad.

Rome, May 9, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei

NOTE

1) It is noted that XX, invoked by the Company, is a different legal entity compared to Azzurro Club Hotels S.r.l., having a different corporate name, different VAT number, and different legal representative.

2) See Cass. civ. Sez. I, Ord., (hearing on 02/16/2022) 28-03-2022, no. 9920, which accepted the appeal of the Guarantor against the ruling no. 10789/2019 of the Court of Rome. The aforementioned principle had also been previously expressed by the Supreme Court with order Cass. Civ. sez. I – 26/04/2021, no. 110.